

20STCV48295 20STCV48295

County: los-angeles

Division: Civil Law and Motion

Department: 514

Hearing date: 2026-08-24

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C514%2C08%2F24%2F2026

Source SHA-256: 7f7d5c032f8264855ac3a7b92d7039617436bd0d952808e66ba5f2a0d844a678

Case Number: 20STCV48295 Hearing Date: August 24, 2026 Dept: 514

Nelson v. Bannon

20STCV48295

Motion for Sanctions and Issuance of OSC re Contempt

Tentative Ruling

The request for monetary sanctions is granted in part.

The request for issuance of an OSC re contempt is granted conditionally; moving party has shown a sufficient basis for issuance of an OSC but must submit a revised proposed OSC that complies with all applicable requirements.

Background

On December 17, 2020, Chris Nelson ("Plaintiff") filed a complaint against Emily Bannon ("Defendant") for (1) defamation per se, (2) defamation per quod, (3) false light, (4) intentional infliction of emotional distress, (5) intentional interference with prospective economic relations, (6) negligent interference with economic relations, and (7) injunctive relief. On February 16, 2021, Plaintiff filed the first amended complaint.

On February 14, 2022, Defendant filed an answer and cross-complaint against Plaintiff for breach of contract. On April

1, 2022, Plaintiff answered the cross-complaint.

On January 23, 2025, the Court granted Defendant's anti-SLAPP motion and struck the first amended complaint.

Judgment was entered in favor of Defendant on February 5, 2025.

On June 4, 2025, the Court granted Defendant's motion for attorney's fees under the anti-SLAPP statute in the amount of \$210,285.71.

On February 9, 2026, the Court granted Defendant's motion to compel and ordered Plaintiff to respond to Defendant's post-judgment interrogatories and requests for production.

On June 18, 2026, Defendant filed this motion for sanctions and for issuance of an Order to Show Cause re Contempt.

No opposition has been filed.

Legal Standard

Sanctions

"To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process: ... (a) The court may impose a monetary sanction" (Code Civ. Proc., § 2023.030.)

"Misuses of the discovery process include, but are not limited to, the following: ... (d) Failing to respond or to submit to an authorized method of discovery. ... (g) Disobeying a court order to provide discovery." (Code Civ. Proc., § 2023.010.)

The Civil Discovery Act

provides for an escalating and "incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of

termination.” (Lopez v. Watchtower Bible & Tract Society of New York, Inc. (2016) 246 Cal.App.4th 566, 604.) Discovery sanctions should be appropriate to and commensurate with the misconduct, and they “should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 992.) “If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse.” (Ibid.; see also, e.g., Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-280.)

The primary purpose of discovery sanctions is to obtain compliance with the Civil Discovery Act and the Court’s orders. It is not to punish. (Newland v. Super. Ct. (1995) 40 Cal.App.4th 608, 613; Ghanooni v. Super Shuttle of Los Angeles (1993) 20 Cal.App.4th 256, 262.) A discovery sanction should not create a “windfall” for a party or place a party in a better position than it would have been if the opposing party had simply complied with its obligations under the Court’s orders and the Civil Discovery Act. (Rutledge v. Hewlett-Packard Co. (2015) 238 Cal.App.4th 1164, 1194; see also 2 Weil & Brown, California Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026), ¶¶ 8:2214-2220.)

Contempt

“The following acts or omissions in respect to a court of justice, or proceedings therein, are contempts of the authority of the court: . . . (5) Disobedience of any lawful judgment, order, or process of the court.” (Code Civ. Proc. § 1209, subd. (a)(5).) “When the contempt is not committed in the immediate view and presence of the court or judge, a warrant of attachment may be issued to bring the person charged to answer, or, without a previous arrest, a warrant of commitment may, upon notice, or upon an order to show cause, be granted” (Code Civ. Proc. § 1212.)

“The facts essential to establish jurisdiction in the contempt proceeding are: (1) the making of the order, (2) knowledge of the order, (3) ability of the accused to render compliance, and (4) willful disobedience of the order.” (Application of Ny (1962) 201 Cal.App.2d 728, 731.) “All elements of charged contempt must be averred in

affidavit of accuser and must be developed in the proofs.” (Ibid.) The party seeking to have a person held in contempt has the burden of proving the ability to comply beyond a reasonable doubt. (Application of Liu (1969) 273 Cal.App.2d 135, 141-42; In re Cassil (1995) 37 Cal.App.4th 1081, 1087.)

Discussion

Request
for Sanctions

The evidence before the Court shows that Plaintiff has failed to provide the discovery ordered by the Court on February 9, 2026. (Strugar Decl., ¶ 14.)

Failing to respond to properly served discovery is a misuse of the discovery process subjecting the wrongdoing party to sanctions. So is failing to comply with a court order regarding discovery.

Defendant’s request for additional monetary sanctions is granted in part. Given the relatively straightforward nature of this motion, the Court sets additional sanctions in the amount of \$2,200.

The request for an order setting further sanctions of \$500 per week until Plaintiff provides responses is denied.

Request
for OSC re Contempt

Contempt proceedings are different from, and require far more procedure than, a standard law-and-motion matter. Because a contempt places a person’s liberty at issue, these procedures must be strictly followed.

The alleged contempt at issue is an indirect contempt. In general, the first step in an indirect contempt proceeding is an application for an issuance of an Order to Show

Cause. (Code Civ. Proc., §§ 1211, subd.

(a).) The application must be supported

by an affidavit or declaration that sets forth the facts of the alleged

contempt, and the moving party must submit a proposed order (the proposed OSC

re Contempt). (Code Civ. Proc., §§

1211-1211.5; 2 Weil & Brown, supra, ¶¶ 9:713-714.1.) The application may be made through the

ordinary procedures for an ex parte application (including ex parte notice to

opposing counsel). (2 Weil & Brown, supra,

¶ 714.2.)

If

the application is granted, the Court will then issue an OSC re Contempt that,

among other things, describes the alleged contempt and sets the date and time

for a hearing. (Code Civ. Proc., § 1212;

2 Weil & Brown, supra, ¶ 9:715.)

(The Judicial Council has published an OSC re Contempt form for use in

family law cases; although that form is not used in civil law cases, it may

provide some guidance to counsel in how to prepare an OSC re Contempt in a

civil law matter.) The moving/citing

party must then serve the OSC re Contempt and supporting

affidavits/declarations on the cite/respondent in the same manner as a service

of summons – usually personal service. (Lund

v. Super. Ct. (1964) 61 Cal.2d 698, 713; Cedars-Sinai Imaging Medical

Group v. Super. Ct. (2000) 83 Cal.App.4th 1281, 1286.)

At

the date and time set for hearing, the citee will be arraigned; the arraignment

generally includes (among other things) advisements of the charges against the

citee and the rights of the citee, including the right to counsel. Most commonly, at the arraignment, the matter

is set for an evidentiary hearing, or trial, on a future date.

There

is generally no right to a jury trial in civil contempt proceedings, even

though such proceedings may result in a fine or imprisonment. (Code Civ. Proc., § 1209.) The citor/moving party has the burden of

proof and is held to a standard similar to that of a prosecutor in a criminal

proceeding. The citee is presumed

innocent, and the proof of the contempt must be beyond a reasonable doubt.

Here,

Defendant has made a sufficient showing to support the issuance of an Order to Show Cause re Contempt. But Defendant has not submitted a proper proposed OSC. The OSC does not identify how many counts of contempt are alleged and does not describe the conduct that Defendant contends constitutes the contempt.

Accordingly, the request for issuance of an OSC re contempt is granted, on the condition that Defendant must promptly submit a revised OSC that meets all applicable requirements.

Conclusion

The Court GRANTS IN PART Defendant Emily Bannon's motion for sanctions and for issuance of an OSC re contempt.

The Court GRANTS IN PART Defendant's request for sanctions for Plaintiff's failure to comply with the Court's order dated February 9, 2026.

The Court ORDERS Plaintiff Chris Nelson to pay monetary sanctions under the Civil Discovery Act in the total amount of \$2,200 to Defendant Emily Bannon (through counsel) by September 24, 2026.

The Court GRANTS Defendant's request for issuance of an OSC re Contempt, on the CONDITION that Defendant must promptly submit a revised proposed OSC that complies with all applicable requirements.

Moving party is ordered to give notice and file proof of service of the notice with the Court.